

‘ Powers, Authorities, Clauses, Rules, Directions, Payments, and Provisions, by such Acts respectively made and enacted: And whereas by one other Act, made in the seventh Year of the Reign of his present Majesty (intituled, *An Act to explain, amend, and reduce into one Act of Parliament the general Laws now in being for regulating the Turnpike Roads of this Kingdom, and for other Purposes therein mentioned*), the said Act of the twenty-eighth Year of his late Majesty, except so much thereof as continue the Acts then made for repairing and amending Turnpike Roads, subject to the Tolls and Duties by such Acts respectively granted, was repealed: And whereas by one other Act, made in the thirteenth Year of the Reign of his present Majesty (intituled, *An Act to explain, amend, and reduce into one Act of Parliament the general Laws now in being for regulating the Turnpike Roads in that Part of Great Britain called England; and for other Purposes*), the said Act of the Seventh Year of his present Majesty, except so much thereof as repealed the several Acts therein mentioned, was also repealed: And whereas Doubts have arisen, whether the said last-mentioned Act, made in the thirteenth Year of his present Majesty, by repealing the said Act of the seventh Year of his present Majesty, in the Manner aforesaid, hath not virtually repealed that Part of the Act of the twenty-eighth Year of his late Majesty, which continued the said Turnpike Acts for five Years; in order therefore to obviate all such Doubts, and to enforce the said Provision for continuing the said Turnpike Acts, as contained in the said Act of the twenty-eighth Year of his late Majesty's Reign; be it enacted by the King's most Excellent Majesty, by and with the Advice and Consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the Authority of the same, That the Provision made by the said Act of the twenty-eighth Year of the Reign of his late Majesty, for continuing the several Acts, made for repairing and amending Turnpike Roads for five Years, shall be and continue in full Force, and be as effectual, to all Intents and Purposes, as the same could, might, or ought to have been, if the said Acts of the seventh and thirteenth Years of his present Majesty's Reign, or either of them, had not been made; any Thing in those Acts, or in either of them, contained to the contrary notwithstanding.

Provisions of Act 23 Geo. 2. for repairing Turnpike Roads for five Years, continued.

II. And be it further enacted, That all and every Person and Persons, who hath or have received, or shall hereafter receive, any Tolls, or other Duties, at any Turnpike or Toll-gate; or who hath acted, or shall hereafter act, in any other respect under the Authority of, and in Execution of any of the Powers of any Act or Acts of Parliament so continued, or intended to be continued, by the said recited Act of the Twenty-eighth Year of his late Majesty, shall be, and is and are hereby indemnified for what he, she, or they have so received or done, or for what he or they shall receive, or do by virtue thereof.

Persons who have or shall receive Tolls at any Turnpike by the aforesaid Act indemnified, &c.

C A P. XXXVII.

An Act for allowing further Time for Inrolment of Deeds and Wills made by Papists, and for Relief of Protestant Purchasers. *Further Time given till January 1, 1775.*

C A P. XXXVIII.

An Act for paving, repairing, cleansing, and lighting, the Streets and Lanes in the City of *Hereford*, and Suburbs thereof, and removing Nuisances and Annoyances therein, and for creating a Fund towards the Expences thereof, by inclosing divers waste Grounds within the Liberties of the said City, and for the better Application of Charity-money for setting the poor People of the said City to Work, and to enable Bodies Corporate to alienate their Houses and Lands within the said City.

C A P. XXXIX.

An Act for the impartial Administration of Justice in the Cases of Persons questioned for any Acts done by them in the Execution of the Law, or for the Suppression of Riots and Tumults, in the Province of the *Massachusetts Bay*, in *New England*.

‘ **W**HEREAS in his Majesty's Province of *Massachusetts Bay*, in *New England*, an Attempt hath lately been made to throw off the Authority of the Parliament of *Great Britain* over the said Province, and an actual and avowed Resistance, by open Force, to the Execution of certain Acts of Parliament, hath been suffered to take place, uncontroled and unpunished, in Defiance of his Majesty's Authority, and to the utter Subversion of all lawful Government: And whereas, in the present disordered State of the said Province, it is of the utmost Importance to the general Welfare thereof, and to the Re-establishment of lawful Authority throughout the same, that neither the Magistrates acting in Support of the Laws, nor any of his Majesty's Subjects aiding and assisting them therein, or in the Suppression of Riots and Tumults, raised in Opposition to the Execution of the Laws and Statutes of this Realm, should be discouraged from the proper Discharge of their Duty, by an Apprehension, that in case of their being questioned for any Acts done therein, they may be liable to be brought to Trial for the same before Persons who do not acknowledge the Validity of the Laws, in the Execution whereof, or the Authority of the Magistrate in the Support of whom, such Acts had been done: In order therefore to remove every such Discouragement from the Minds of his Majesty's Subjects, and to induce them, upon all proper Occasions, to exert themselves in Support of the publick Peace of the Province, and of the Authority of the King and Parliament of *Great Britain* over the same; be it enacted by the King's most Excellent Majesty, by and with the Advice and Consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the Authority of the same, That if any Inquisition or Indictment shall be found, or if any Appeal shall be sued or preferred against any Person, for Murder, or other capital Offence, in the Province of the *Massachusetts Bay*,

Preamble.

How Indictments against Magistrates, and Bay,